

25NWCV04475 25NWCV04475

County: los-angeles

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RAISDANAI vs 24

24 HOUR FITNESS USA, LLC., et al.

CASE NO.: 25NWCV04475

HEARING: 7/13/26 @ 9:30 AM

#13

TENTATIVE ORDER

Defendant

24 HOUR FITNESS USA, LLC.'s Demurrer is OVERRULED. Defendant to answer within 10 days.

Plaintiff

to give NOTICE.

Defendant

24 HOUR FITNESS USA, LLC. (Defendant) demurs to Plaintiff ALI RAISDANAI's (Plaintiff) First Amended Complaint (FAC) as to the first through third causes of action.

Background

This is a personal injury action.

Plaintiff alleges on December 22, 2023 Plaintiff was present near the front door of the 24 Hour Fitness facility. Plaintiff intended to use the restroom available to gym members. Plaintiff approached the restroom, but Defendant

FABIAN DWAYNE GREEN (Green) refused access, giving inconsistent or unjustified excuses as to why Plaintiff could not use the restroom. Green specifically instructed Plaintiff to use the men's locker room instead and refused to unlock or allow Plaintiff access to the ADA/All Gender Restroom. During this interaction, Green became confrontational, displaying an aggressive demeanor and challenging and/or attempting to provoke Plaintiff into a physical altercation. Plaintiff, not wishing to escalate the situation, chose to leave the immediate area. (FAC, ¶ 7.) Plaintiff further alleges that shortly thereafter, Plaintiff observed Green allowing another individual, a known unruly customer, to enter the gym. Plaintiff reasonably believed this individual was being permitted access to the ADA/All Gender Restroom, as Plaintiff had previously observed this same individual sleeping in that specific ADA/All Gender Restroom on prior occasions after staff had unlocked the door for him. This observation caused Plaintiff confusion and concern as to why Plaintiff had been denied restroom access while the other individual was allowed entry under similar or more questionable circumstances. Plaintiff then turned to return toward the entrance of the gym. Before Plaintiff could open the entrance and/or exit door, Green ran toward Plaintiff at high speed. Without warning, justification, or legal cause, Green physically attacked and assaulted Plaintiff with such force that Plaintiff suffered injuries and damages. (FAC, ¶ 8.) Plaintiff alleges the following causes of action:

1. Assault
2. Battery
3. Intentional Infliction of Emotional Distress
4. Negligence
5. Negligent Hiring, Supervision, and Retention

Meet and Confer

"Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP § 430.41(a).) The

Court finds that Defendant's counsel adequately made an attempt to meet and confer.
(Tarter Decl., ¶¶ 3-4, Exhs. A-B.)

Legal Standard

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

"Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

1st

– 3rd CAUSES OF ACTION; Vicarious Liability

Defendant

argues that the first through third causes of action fail because Plaintiff offers only bare legal conclusions that Green was acting "in the course and scope" of

his employment. California Courts have long held that “respondeat superior” liability only applies if the alleged tortious conduct was a “foreseeable” consequence of the employee’s employment. (*Hinman v. Westinghouse Elec Co.* (1970) 2 Cal.3d 956, 960; *Rogers v. Kemper Constr. Co.* (1975) 50 Cal.App. 3d 608; *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291.)

Defendant

contends that Plaintiff has only alleged that Green was an employee and/or principal of Defendant, that the alleged tortious conduct occurred while Defendant was working at a 24 Hour facility, and that Defendant was acting with the course of his employment. (FAC ¶¶ 13, 20, 21, 24, 29, 30, 38, & 39.) Defendant contends these statements are conclusory. (*Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038.)

In

opposition, Plaintiff argues that Plaintiff has alleged sufficient facts to show that the alleged assault, battery, and intentional infliction of emotional distress arose from the employees scope of employment because Plaintiff alleges that the employee attacked him over Plaintiff’s attempted use of the ADA/All Gender Restroom on the premises. (FAC ¶¶ 7-8.) Vicarious liability [may be] inappropriate where the misconduct does not arise from the conduct of the employer’s enterprise but instead arises out of a personal dispute. Here, however, there are sufficient facts to show that the misconduct arose from the employee’s management of the premises and as part of his job duties. (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 296-297.)

The

Court finds that at the pleading stage Plaintiff sufficiently alleges facts to support the causes of action under vicarious liability. An employer will not be held vicariously liable for an employee’s malicious or tortious conduct if the employee substantially deviates from the employment duties for personal purposes. (*Juarez v. San Bernardino City Unified School District* (2024) 106 Cal. App. 5th 1213, 327.) In cases involving assaults by employees, imputation of liability follows where the employment in some way involves the risk of force being used, that is, where the act is connected with the employment. (*Golden West Broadcasters, Inc. v. Superior Court* (1981) 114 Cal. App. 3d 947.) Moreover, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when ‘the facts are undisputed and no conflicting inferences are possible.’ [Citation.]

In some cases, the relationship between an employee's work and wrongful conduct is so attenuated that a jury could not reasonably conclude that the act was within the scope of employment. (*Ayon v. Esquire Deposition Solutions, LLC* (2018) 27 Cal.App.5th 487, 494–495.)

Here,
reading the allegations liberally and in context, Plaintiff alleges Green had control regarding access to Defendant's facility given Green "refused access [to Plaintiff], giving inconsistent or unjustified excuses as to why Plaintiff could not use the restroom." (FAC, ¶ 7.) It was reasonably foreseeable that during Green's exercise of control over the premises, a physical altercation may occur.

Accordingly, the demurrer as to the first through
third causes of action is OVERRULED.
Defendant to answer within 10 days.